

1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)5 (several items could be ticked/mentioned):

- X Constitutional laws and/or legislation prohibit discrimination in education
- X Regulations prohibit discrimination in education
- X Policies and programmes aim to eliminate and prevent discrimination in education
- X Access to justice in case of violations of the right to non-discrimination in education
- X Combatting discrimination in terms of curriculum
- ☐ Other:

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ☒ *Non-discrimination in the admission of pupils to educational institutions*
- ☒ *Non-differential treatment, including of foreign nationals resident in your country*

Act CX of 2011 on National Public Education (hereinafter: public education law) and Act CXXV of 2003 on the Equal Treatment Act expressly prohibit segregation; any discriminative action taken by institutions (schools) or their operators are void.

In order to implement legal regulations of antidiscrimination and prevent discrimination, school maintainer centres shall draft their Equality Action Plan on Public Education (Government Decree 229/2012. (VIII. 28.) on the Implementation of the Act on National Public Education). An amendment of the Ministerial Decree came into force in April 2018 introduced a stronger guarantee by stipulating the obligatory supervision of the educational equality action plans at least every 3 years (Section 21 of Government Decree 229/2012 (VIII. 28.)). The measurement serves the improvement of inclusive education, helps the planning, monitoring and evaluating of tasks to be carried out by the schools, school operators and stakeholders.

Each school maintainer district center operates permanent anti-segregation working group as of November 2017 (Government Decree 134/2016. (VI.10. on the Klebelsberg Centre). The working groups assist the monitoring of local situation of inclusive education, implementation of desegregation plans, detect and signal the risk of segregation.

According to the Section 48 of Public Education Law students of a school or boarding school may establish student circles to organise their joint activities in connection with education, to educate for democracy and public responsibility, in line with the school regulations; the establishment and operations of such circles are supported by the teaching staff.

Student circles have the right to decide, after the opinion of the teaching staff is heard, on planning and organising their own community life, electing their functionaries and are entitled to represent themselves in the student council. Students and student circles may create student councils to represent students' interests. The teacher with higher teacher qualification nominated for this task by the head of the institution on the basis of the student council proposer for a period of five years shall support the work of the student council.

One of the educational objectives of the NCC is the education for democracy and of civic education, part of the definition of which reads: „*observing the rules of coexistence, respect of human dignity and human rights, nonviolence, and equity*”.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- X Constitutional laws and/or legislation guarantee equal access to education
- X Regulations ensure equal access to all levels and types of education
- X Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

See above in point 1.1.

This notably is covered under SDG target 4.1 and partly target 4.b

Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- X Providing financial incentives and fellowships
- X Providing positive or affirmative action measures
- X Ensuring inclusion in mainstream schools for all learners
- X Training teachers on inclusive education
- ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET)
- ☐ Providing re-entry programmes for young mothers
- ☐ Eliminating all barriers for pregnant girls or young mothers in education
- X Providing auxiliary assistance
- X Adapting education infrastructure
- X Adapting curricula and methods
- ☐ Providing language classes to newcomers (e.g. refugees)
- X Eliminating administrative barriers to education
- X Providing flexible learning pathways
- X Valuing diversity in schools
- X Combatting stereotyping and stigmatisation
- ☐ Other:

Please elaborate further on the measures taken, including those to ensure gender equality and the empowerment of girls and women in and through education:

One of the educational objectives of the NCC is the education for democracy and of civic education, part of the definition of which reads: „observing the rules of coexistence, respect of human dignity and human rights, nonviolence, and equity“. The so called vertical topic is the *life styles and social status of men and women*, which means that this topic comes up in the chronological curriculum several times while dealing with different historical periods.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

The international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

Which Is compulsory and free of charge pre-primary education available in your country?

X Pre-primary education is compulsory: Please provide the age of enrolment and duration:

From the age of 3 until the age of 6.

X Pre-primary education is free of charge for all: Please provide the duration:

For 3 years.

Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

The Hungarian kindergarten system provides full-day care for 3-6 year-old children. Taking into account the values of the Fundamental Law of Hungary and the obligations assumed in international treaties signed by Hungary, the **National Core Programme of Kindergarten Education** is the framework for all kindergarten education programmes in all institutions providing kindergarten care, regardless of the maintainer.

For the **2014-2020 development cycle**, a budget of 100 billion HUF was devoted to the development of nursery and kindergartens.

In the **Széchenyi 2020 Development Plan**, the Educational Authority has led a national project to support early childhood education. The aim of the project, which was successfully implemented in consortium between 2016 and 2018 was to raise opportunities and to increase the capacity for disadvantaged children in early childhood education institutions.

The **Public Education Development Strategy** focuses on the health development based on sports activities in the entire educational system, including kindergartens.

The early childhood education system is also a tool for **combating child poverty**. Children living in families with at least three children receive meals in crèches and kindergartens free of charge. Furthermore, the so-called “kindergarten milk” programme provides 0.25 litres of dairy products four times a week to every child (beneficiary).

From 2016, the free meal during school breaks became a mandatory task for local municipalities, so it is generally available. As a result of the government's efforts, nursery and kindergarten allow 80% of children get to eat for free.

Kindergarten attendance from 3 years is compulsory from 1st September 2015 (previously it was compulsory from the age of 5), but in case of many children with disadvantaged socio-cultural background it was to impellent it, therefore, from January 2016, family allowance is deductible if a child is absent from kindergarten for more than twenty days without valid reason.

Laws and regulations:

Act CX of 2011 on National Public Education

Ministerial Decree (Ministry of Human Capacities) 20/2012 (VIII.31) on the operation of educational institutions and on the use of names of public education institutions

Gov. Decree 363/2012. (XII. 17.) on the National Core Programme of Kindergarten Education

2.2 Universal primary and secondary education

In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

Is primary education compulsory in your country?

X Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Education is compulsory until the age of 16. The share of 15-19 years-olds who were enrolled in education were 84% in 2017, the same level as the OECD average. (Source: Education at a Glance 2019, OECD)

Is primary education available free of charge to all?

X Yes: Please provide the duration and indicate the extent to which it is.

Compulsory education starts in the calendar year when the child turns 6 until that year's 31 August, but not more than one year later. The primary education phase consists of two stages: the primary phase (grades 1 to 4) and the lower secondary phase (grades 5 to 8).

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

According to the Fundamental Law of Hungary, the early childhood education, primary education and secondary education until obtaining the second qualification is a free basic public service.

The Government was providing free textbooks on an ascending basis and from 2020, textbooks are available free of charge for all students in primary and secondary schools. An important aim of providing free textbooks is to support school enrolment, take over some of the costs of schooling from families.

The provision of free meals or meals at a reduced price in pre-schools and schools to socially disadvantaged children is offered to support pre-school and school attainment of children and students from deprived socio-economic background.

Laws:

Act CXC of 2011 on National Public Education

Act XXXI of 1997 on Child Protection

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

Is secondary education (middle/high) available free of charge?

X Yes: Please provide the duration and describe the extent to which it is.

Upper-secondary education (ISCED 3) typically starts from grade 9 in Hungary after completing the 8-grade single-structure educational phase (i.e. primary and lower secondary, ISCED 1 and 2). Most commonly, it involves 4 grades, less commonly 5, 3 or 2 grades. Hungary has maintained the three main programmes of upper-secondary education: general secondary, vocational secondary and vocational education and training.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

The Fundamental Law of Hungary declares that all Hungarian citizens have the right to education, and the State guarantees this right to all of its citizens by providing free and compulsory basic education (ISCED 1+2), free and generally available upper-secondary education (ISCED 3)

The Government was providing free textbooks on an ascending basis and from 2020, textbooks are available free of charge for all students in primary and secondary schools. An important aim of providing free textbooks is to support school enrolment, take over some of the costs of schooling from families.

The provision of free meals or meals at a reduced price in pre-schools and schools – in secondary schools as well – to socially disadvantaged children is offered to support pre-school and school attainment of children and students from deprived socio-economic background.

Laws:

Act CXC of 2011 on National Public Education

Act XXXI of 1997 on Child Protection

2.5 Quality education provision and learning environment

Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

X Establishment of minimum norms and standards in education

X Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)

X Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

External evaluation has uniform rules and procedures at all levels of public education (kindergartens, basic and upper secondary schools) and it is of utmost importance. The minister responsible for education is in charge of national pedagogical-professional evaluation. It is a continuous external evaluation of institutions, evaluating each institution every five years. The internal evaluation of institutions is also important in the quality improvement process since the external evaluation relies on the internal evaluation and also on the results of students at standardised tests.

In order to improve the performance of schools, Educational Authority evaluates data from the ESL early warning system and national assessment of basic competences and provides feedback to the schools and school-maintainers on their performance:

After the analysis and comparison of data from previous school years, schools with high ratio of students at risk of drop-out have been selected. Their learning outcomes based on the last 3 years' national basic competence assessments and their previous demands for methodological assistance were also examined by Educational Authority: if 50% of students in grades 6, 8 or 10 in school haven't achieved minimum requirements of performance, the school-maintainer obligated to prepare comprehensive action plan to improve learning outcomes. The schools also obligated to take professional, methodological assistance from pedagogical assistance services – particular warning for the ones which haven't demanded assistance in the last 2 years – in order to eliminate low achievement, improve school performance and prevent drop-out.

The Act on Public Education introduced the obligatory employment of school psychologists. Tasks of the school psychologist are for example to organize and offer assistance in psychological issues related to sexual education, prevent interpersonal conflicts and bullying in schools.

The Education Authority coordinate the European Network Against Bullying in Learning and Leisure Environments program. The aim of the program is to develop of the social skills and emotional abilities, peer support and avoiding the school bullying. The main target groups of the programme are secondary school learners, and besides, this program (as a teacher training program) is available for all teacher educators since 2018. In autumn 2016, the KiVa innovative school-based antibullying program were introduced.

The Digital Child Protection Strategy of Hungary was launched in 2016 (by the adoption of Government Decree N° 1488/2016). The primary goals of the strategy are the support of the conscious and value creating use of the internet, the development of responsible media use and emphasizing the enforcement of those regulations and measures that serve the protection of children and their personality rights. In connection with the Strategy a detailed action plan was adopted, on the basis of which the goals of the Strategy are being implemented with the engagement of interministerial and civil society actors. National Educational Portal – launched in 2015 – is continually being expanded with online contents safe for children. An information package about child protection was compiled and uploaded to the Portal, made available by every school on their own websites.

The topics of the Digital Thematic Week – which schools can join voluntarily – have organically comprised media consciousness, the recognition of fake news and the conscious use of ICT tools and devices. Setting up a peer mentoring programme has been started, since peer communities play an equally important role in the life of today's young generation as the internet. A training programme has been created for parents with the help of which they can get a better insight into the threats of the internet and the means of avoiding them.

From among the current actions of the Strategy it is worth highlighting the development of a filtering software to be used by all schools.

2.6. Education personnel

This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)

☒ Initial training and continuous professional development is provided

☒ Minimum standards and qualifications are required for the teaching profession

☒ Measures taken to strengthen the social status and attractiveness of the teaching profession

☒ Performance monitoring systems

☐ Measures taken to increase women in leadership positions in education

☐ Other:

Please briefly elaborate further on the measures taken:

- On 1 September 2013, the new teacher career system was launched that is a career pathway, allowing for a crucial improvement in the situation, professional and social esteem of teachers in the labour market.
- Teachers' salaries increased by an average of 50 per cent between 2013 and 2017.
- With differentiated wage incentives, the extra pedagogical performance needed for the effective education of pupils from disadvantaged socio-economic situations will be recognised in the frame of target tasks of projects for teachers.

- On 1 September 2013 the teacher qualification system was introduced. Then in 2016, the specialist counselling system will also contribute to the effective work of teachers. Further development is our strategic goal.
- In order to make teacher training more attractive, in 2013, the Government established the Klebelsberg Training Scholarship Programme, with the aim of providing a significant scholarship to the shortage areas of the teaching field (e.g. natural sciences, professional, and art subjects). Teacher training, including kindergarten teacher training, has been one of the most popular courses among applicants for many years. 43% more people wanted to study in teacher education in 2019 compared to 2013.
- Teachers are required to undergo teacher training courses for at least 120 hours of competence development over seven years, a system undergoing further development. In the 2018/2019 academic year, 40,000 teachers were able to take part in digital training.

Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

- ☐ Yes
☐ No

X No

2.7 Respect for human rights and fundamental freedoms

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This is covered under SDG target 4.7.12 Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)a of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

X Curriculum includes global citizenship education and/or human rights education

X Educational and/or extracurricular activities are organized on global citizenship education and/ or human rights education

☐ Other:

The National Core Curriculum and the framework curricula regulate the framework of education content in Hungary. The subjects of history and global citizenship deal with civilization and human rights. Additionally, education for sustainability also touches upon this topic, and for instance the Sustainability thematic week or the World's Largest Lesson are events for the second X.

2.8 Private education

Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

Please provide a brief description:

The establishment of private educational institutions is regulated by the Act on National Public Education on the one hand, and its implementation decree on the other hand. Accordingly, private educational institutions are registered by the government office competent at the principal place of the institution, which also issues the institution's operating license if the owner of the institution has the personal, objective and financial conditions set out in the legislation. Government offices regularly review the activity of the owner and the public educational institution.

Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation13 explicitly apply to private educational institutions?

Yes ☒ No ☐

Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

As we already indicated in the answer given for the previous question, private educational institutions may start their operation after the completion of the procedures defined in the Act on Public Education. The deed of foundation and the operating license of the institution may not include any rules based on which anybody could be excluded from applying for a given institution. As you can choose your school freely in Hungary, anyone can decide to apply for a private educational institution. It has to be noted, however that private institutions may legally link some of their services to payment. This also means that these services are not accessible for everyone.

Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☒ No ☐

The Act on National Public Education provides that religious and moral education is obligatory in state-owned public educational institutions and is optional – if demanded by the parents – in private institutions. It is the duty of churches to organise religious and moral education, but schools are cooperating partners to churches in the organisation.

2. 9. Rights of national minorities

National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation protect the right to education of national minorities

☒ Legislation or regulations guarantee the right of national minorities to study in their mother tongue

☒ Curriculum is adapted to national minority needs

☒ Teachers are trained to adapt to national minority needs

☐ Other:

Please provide a brief description of the provisions:

The Fundamental Law of Hungary recognizes national minorities in Hungary as constituent parts of the state, and the Fundamental Law – among others - undertakes the fostering and guarding of the languages and cultures of national minorities in Hungary. It recognizes their right to freely express and preserve their identity, use their mother tongue, use names in their own languages individually and collectively, nurture their own cultures and receive education in their own mother tongues.

In line with the Fundamental Law, the detailed rules applicable to the teaching and education of national minorities in Hungary are set out by the act on the rights of national minorities and the Act on National Public Education. In accordance with this, participation in minority teaching and education is voluntary in Hungary, and is provided on the basis of the parents' demands belonging to the minority in question. On the initiative of at least eight parents of the same nationality made in writing, the local government having this duty will be responsible for organising the teaching and education of national minorities. The parents have the right to choose the form of national minority kindergarten education (kindergarten with the mother tongue and the national minority language, bilingual national minority kindergarten education and care, and Roma national minority kindergarten education conducted solely in Hungarian), and the form of national minority school teaching-education (teaching-education in the national minority language, bilingual minority national teaching-education, language teaching and education for minorities, Roma/Gipsy minority teaching-education in Hungarian, supplementary minority teaching-education). It is the duty of the state to ensure the legal, personal and objective conditions of teaching-education with regard to parental demands.

Effective legal provisions give a right of consent to national minority self-governments in the owners' decision-making process concerning the most important questions relating to minority teaching and education. We also consider it important that national minority self-governments may take over and maintain public educational institutions. A local national minority self-government may delegate a member to the school board, and the Association of National Minority Self-Governments may

delegate a member to the newly formed educational district councils. Additionally, the National Minority Council operating as a consultative body of the Minister responsible for education may express their opinion on minority teaching-education related measures and drafts. We also think it is important that legal drafts are given to national minority self-governments for commenting during the administrative consultation. Based on the above it can be ascertained that legal provisions continue to give the right to national self-governments concerned in order to express their opinion on national minority teaching-education.

National minority kindergarten education shall be organised with consideration to the basic principles set out in the national minority directive and the national basic program of Kindergarten Education. The content of school teaching-education is defined by the national minority directive and the national minority framework curricula. Additionally, the consent of the national minority self-governments will have to be obtained to issue legislation on the contents of minority teaching-education (points related to the framework curricula and those of the boarding school education basic programme concerning national minority teaching-education, the national minority kindergarten education directive, and the national minority school education directive).

In the case of most national minorities, national minority teacher training is ensured at the Hungarian institutions of higher education. They also have the right to be employed with their teachers' degrees obtained in their mother countries or countries of that language as the official language after the naturalisation of their diploma. The Act on National Public Education allows for several exemptions in favour of professionally trained teachers. If there is no proper national higher education for teachers of some specific subjects, or if a task cannot be performed due to the lack of properly graduated teachers, kindergartens, schools or boarding facilities may employ persons with (non-minority) degrees as national minority teachers if they have at least an intermediate level complex state-recognized language certificate or an equivalent document in the given national minority language. The Act also allows for teachers with foreign degrees to be employed for a maximum of three years if they are allowed to work as teachers in the country which has issued their diploma, and if they made their studies in the language of the given national minority.

In line with the applicable legal provisions, national minority self-governments may establish and operate teaching-educational institutions, and may take over the management of national minority teaching-educational institutions established by other maintainers.

As a result, national-level minority self-governments have taken over 27, while local-level minority self-governments have taken over 63 public educational institutions over the past years. The central budget provides priority subsidy for the maintenance of such institutions.

In national minority school teaching-education, the acquisition of the knowledge falling within the scope of ethnology in addition to the language and literature of the given national minority shall be obligatory. In the case of the Roma, the teaching of the Romani or the Beash language shall only be ensured if requested by the parents. (The main reason for this is that a major part of the Roma community in Hungary speaks Hungarian, and does not speak any languages used by the Roma). Ethnology shall be taught in the language of the national minority. It is only possible in the case of the Roma to learn ethnology in Hungarian for the reasons described above.

The National Minority Teachers' Programme elaborated by the Parliamentary Committee for National Minorities in Hungary facilitates the provision of national minority teachers. The programme aims at increasing the number of young people opting for a national minority teacher carrier, and the

level of national minority teacher training, as well as making language teaching more efficient, and keeping national minority teachers in this career by recognizing them at a higher level. The program also includes scholarships for young people in national minority teachers' programmes, support of national minority teacher training facilities through applications, and a significant rise in the level of national minority allowances. The amount of the national minority allowance had gradually quadrupled for the past three years by 2020. Additionally, even the national minority teachers who were not entitled to receiving any national minority allowance before will now be entitled to a differentiated lower level national minority allowance by 2020. The students opting for a minority teachers' programme at Hungarian institutions of higher education may sign up for the Minority Kindergarten Teachers' Scholarship Programme. In exchange for the scholarship they undertake to work at a national minority public educational institution throughout the scholarship period. The third element of the programme is the earmarked subsidy given to Hungarian institutions of higher education providing national minority teacher training, which is used for tasks to improve the quality of national minority teacher training programmes.

As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

The primary and secondary schools aim to preserve languages and strengthen the identity of ethnic minorities in Hungary. In such schools, education and learning is conducted in one of the seven Hungarian ethnicities (Greek, Croatian, German, Romanian, Serbian, Slovak and Slovenian). Children (ethnic or non-ethnic), whose mother tongue is Hungarian, minority languages are learned as a foreign language. According to the Act on the Rights of Minorities, at the request of at least 8 parents, a nationality class or study group may be set up. For groups of less than 8, language studies are organized in an extra-curricular form and, if necessary, travelling teachers are provided.

The organization of minority kindergarten education and minority school education can be initiated by the parents and legal representatives of the same nationality by filing an application, which must be submitted to the obligated person by 31 May each year. If at least eight parents of the same nationality initiate the nationality kindergarten education or nationality school education, scholarship shall be organized in a system starting from the school year or the school year starting in the calendar year following the receipt of the application. Education is only organized if the actual enrollment of 8 children are provided.

Acts:

Act CXC of 2011 on National Public Education
Act CLXXIX of 2011 on the Rights of Minorities

2.10 Rights of refugees and migrants

The Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants'

right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

Section 92 of the Act CX of 2011 on National Public Education rules the educational conditions of the non-Hungarian minor citizens in Hungary until their completion of compulsory education as follows:

Non-Hungarian minor citizens shall be entitled to access pre-school educational services and shall be subject to compulsory education in Hungary if they

a) have one of the following status: refugee, beneficiary of subsidiary protection, beneficiary of temporary protection, received by specific provision of the Act on Asylum as of the date of submission of their request for recognition,

b) are entitled to enjoy the right to freedom of movement and stay in accordance with the Act on the Entry and Stay of Persons Enjoying the Right to Freedom of Movement and Stay,

c) fall under the scope of the Act on the Entry and Stay of Nationals of Third Countries and have an immigration status or have been granted settlement, or are authorised to stay in the territory of Hungary. Rights regulated in points b) and c) can be exercised if the parent and the child have been issued a stay permit exceeding 3 months.

Most of foreigners living in Hungary are Hungarians having come from neighbouring countries. Due to the same ethnicity, the common language, culture and history, the migrant community in Hungary dominated by Hungarians from transborder territories did not cause such social problems as immigrant populations with different cultures, languages or religions did in Western Europe. The mass migration experienced in 2015 did not cause a serious trouble in the Hungarian public educational system, because migrants arriving here did not consider Hungary as a target country but rather as a transit route and moved further after a few days or weeks – except for a tiny proportion.

Most of those economic immigrants whose first language is not Hungarian – and stay in Hungary for a longer period of time – have their children enrolled in foreign or international schools.

There are no prescribed or uniform methods as for the assessment and placement of migrant children. Schools integrate plans and solutions for promoting the integration of children with different cultural backgrounds into their pedagogical programmes and local curricula, which take into consideration the local conditions and needs. Schooling of migrant children takes place in the district school (with obligatory acceptance) according to their place of residence.

Education for children seeking asylum takes place in the premises of the transit zones, as during the official procedure they have to stay within the zones. In the Tompa and Röske transit zones the

academic year is planned according to the ministerial decree regulating it in general. Education started in September 2017 continuing in the current academic year.

Two educational district centres are responsible for providing education in the transit zones: the Szeged Educational District Centre is in charge of education in the Röszke transit zone, while the Kiskőrös Educational District Centre in the Tompa transit zone.

The composition of the groups of asylum seeking minors staying in the transit zones is changing on a daily basis as the duration of processing their applications varies from a few days up to 90 days.

That is why a special pedagogical programme was developed by the Eszterházy Károly University Institute for Educational Research and Development, flexibly adjustable to the ever changing composition of the learning groups and also to the children's linguistic skills and age characteristics. The teaching material is tailored to enhance competence development, particularly targeted at developing intercultural, communication, co-operative and cognitive skills.

Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- X Inclusion in mainstream education
- ☐ Provision of language courses
- ☐ Specific training for educational staff
- X Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- X Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

Please see above

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

X Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

Main issues:

There are systemic measures in order to improve education outcomes, improve the access to quality inclusive education and decrease early school leaving, especially in case of vulnerable student groups (see

these measures in details above). This is a policy priority because according to PISA, there's strong correlation between students' socioeconomic status and school performance.

However, according to PISA2018, **socio-economic status isn't as strong predictor of performance as it was** in previous PISA cycles:

- 24% of the variation in mathematics performance in PISA 2018 in Hungary, 31,6% in PISA2012
- 21% of the variation in science performance in PISA2018, 21,6 in PISA2015
- 19% of the variation in reading performance in PISA2018, 21,6 in PISA2015 (26% in 2006)

Between 2012 and 2015, results in maths remained the same, results in reading and science decreased, therefore every results in basic skills were below OECD average by ~15 points. However, regarding the proportion of low performers **between 2015 and 2018 there are positive changes:**

Proportion of low performers decreased between 2015 and 2018

Underachievers		
Proficiency below Level 2	2015	2018
in reading	27,5%	25,3%
in maths	28,0%	25,6%
in science	26,0%	24,1%

(OECD PISA2015, 2018)

In order to improve access to quality, inclusive education and avoid and prevent school segregation and selection mechanisms, **outputs of recent active desegregation measures are:**

Developments for desegregation implemented within the project "Supporting schools which are at risk of student drop-outs" help to prepare schools being at risk of segregation by methodological developments. The schools involved were selected according to segregation index and schools with court procedure because of segregation have been also involved. The developments to foster desegregation measures and to strengthen inclusion policies are in progress related to these schools and maintenance districts. The concept relies on the Guideline for using the desegregation measures issued by the European Commission through the following measures:

- Strengthening the retention capability of public education institutions:
 - Ensuring equal opportunities for permanently underperforming schools and schools at risk of segregation
 - Targeted development of pedagogical programmes of public education institutions including complex pedagogical methodologies contributing to the prevention of school leaving without qualification.
- Improving the accessibility of quality education, strengthening the public education institutions in compensating disadvantages and creating opportunities:
 - Preparation and support of the management of schools (school leaders)
 - Methodological preparation of teachers to apply pedagogical principles and methods laid down in the renewed education programmes of institutions effectively
 - Ensuring human resources in the institutions
- Desegregation, enhancing access to quality, inclusive education:
 - introduction of innovative pedagogical tools and methods, common trainings for professionals of different sectors (education, social, public administration, etc.)

- Planning and implementing action plans, facilitating smooth access to quality, mainstream schools

300 primary and secondary schools were selected in the above mentioned project. The selection took place on the basis of segregation index and/or involvement of court cases because of segregation on the one hand, and risk of drop-out on the other hand. In 2018, the **situation analyses and action plans** of the selected **schools** have been prepared.

The concept of the **school district equality plan** has been prepared by January 2019. Settlement level **mentoring** provided (13 cities) to support implementation of action plans, desegregation plans. Series of **teacher workshops organised** in 13 different places to improve teachers' resilience. The project **contracted 157 kindergartens** for cooperation with schools in smooth transition of children into inclusive education. The project offered assistance in preparation of desegregation plans for schools who's been involved in segregation court cases.

Complex assistance provided for schools and school-maintainers in order to make them able to raise students' achievement and implement desegregation:

- Mentoring visits (at least one meeting per month with schools' leadership and school maintainers, online communication in-between) in order to support complex school improvement process
- From 2018, a monthly workshop on the pedagogical system supporting the prevention of school dropout and an inclusive index
- Learning practical methods and good practices to address stress management, problem-solving, and manage school conflict situations – the starting date is spring, 2019.
- Meeting for teaching staff focusing on the objectives of school improvement and action plans
- Developing learning communities – for instance, #sulim creative competition, family day. Events to support families-schools cooperation held from December 2018: community-building events were organized on 300 locations in parents-grandparents-teachers-mentors cooperation, with free time activities, activities for competence development and sport activities, etc. Particular attention payed on involvement of socially disadvantaged families in order to build a more cooperative cooperation between parents and schools in order to students' school success
- Methodological support for maintainers to elaborate on the plans for equity in education at the district level, by organizing workshops and providing mentoring services

Concept of pedagogical system supporting the prevention of school dropout and inclusive techniques has been developed and four 50-hour accredited in-service training courses organized from January 2019.

X Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

See the measures taken in order to prevent and eliminate teacher shortage and offer adequate career prospects for teachers above, point 2.6.

1.2. Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered

See above, in points II. 2.6. and III. 1.1.